

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Patrick Browne	Team: Squad #8	CCRB Case #: 201507524	☐ Force	☒ Discourt.	☐ U.S.
			☐ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Thursday, 08/20/2015 5:30 PM	Location of Incident: Willoughby Avenue and Lewis Avenue	Precinct: 83	18 Mo. SOL 2/20/2017	EO SOL 2/20/2017	
Date/Time CV Reported Wed, 09/02/2015 2:41 PM	CV Reported At: CCRB	How CV Reported: In-person	Date/Time Received at CCRB Wed, 09/02/2015 2:41 PM		

Complainant/Victim	Type	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Terrence Shepherd	2548	955477	HBK IRT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POF Silda Kokomeci	17422	955020	HBK IRT

Officer(s)	Allegation	Investigator Recommendation
A.POM Terrence Shepherd	Discourtesy: PO Terrence Shepherd spoke discourteously to § 87(2)(b) [REDACTED]	

Case Summary

Sometime approximately between 5:00 p.m. and 6:00 p.m. on August 20, 2015, though it could have been a bit later, § 87(2)(b) was walking northbound along Willoughby Avenue towards Bushwick Avenue in Brooklyn when she saw a marked police car containing two officers—identified as PO Terrence Shepherd and PO Silda Kokomeci of the Housing Borough Brooklyn Impact Response Team—stopped at a red light. § 87(2)(b) recognized PO Kokomeci from her arrest on § 87(2)(b), so she stopped on the sidewalk and stared for several seconds. After noticing § 87(2)(b) lingering, PO Shepherd, who was driving, allegedly asked her through the open window, “What the fuck are you looking at?” (**Allegation A**). Without replying, § 87(2)(b) continued to stare for several more seconds, at which point PO Shepherd allegedly stated, “Keep fucking moving” (**subsumed within Allegation A**). § 87(2)(b) complied and walked away without any further interaction. She was not arrested or summonsed as a result of this incident.

Mediation, Civil and Criminal Histories

- This case was investigated due to § 87(2)(b)'s refusal to mediate the complaint.
- [§ 87(2)(b)] [§§ 86(1)(3)&(4)] [§ 87(2)(c)]
[REDACTED]
- As of the date of this report, a request for any notice of claim regarding this incident is pending and will be added to the case file upon receipt.

Civilian and Officer CCRB Histories

- PO Shepherd has been a member of the NYPD for two years and this is the first CCRB complaint against him (see Board Review #2).
- In addition to this case, § 87(2)(b) has filed only one other CCRB complaint
§ 87(2)(b)

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) stated that the passenger of the marked vehicle was the same female officer who assisted in her arrest on August 18, 2015, describing her as a uniformed Hispanic female who stood 5’8” with a thin build and long black hair. PO Silda Kokomeci acknowledged being the only female officer present for the above arrest and generally matches § 87(2)(b)'s description as a uniformed white female who stands 5’7”, weighs 153 pounds, and has long black hair (see Board Review #4). § 87(2)(b) stated that the subject officer who cursed at her was the driver of the vehicle and described him as a uniformed light-skinned black male in his late-thirties who appeared tall. PO Kokomeci confirmed that on the date of the incident, she was partnered with PO Terrence Shepherd, a § 87(2)(b)-old, light-skinned, mixed-race male who stands 6’1. PO Shepherd closely matches § 87(2)(b)'s description and, although he was not certain, believed that he was driving their marked vehicle on the date of the incident. PO Shepherd and PO Kokomeci both recorded in their memo books (see Board Review #5 and #6) that at 6:10 p.m., they were in a marked car en route to their housing post. § 87(2)(g)

[REDACTED]

§ 87(2)(g)

Allegation A—Discourtesy: PO Terrence Shepherd spoke discourteously to § 87(2)(b)

§ 87(2)(b) (see Board Review #7) maintained that while walking down the street, she spotted PO Kokomeci sitting in a police car that was stopped at a red light and recognized her from her arrest § 87(2)(b). Given the tumultuous circumstances of the arrest, § 87(2)(b) stopped to stare at PO Kokomeci. § 87(2)(b) alleged that after several seconds, PO Shepherd noticed her and asked, “What the fuck are you looking at?” Without replying, § 87(2)(b) kept staring, at which point PO Shepherd allegedly stated, “Keep fucking moving.” § 87(2)(g)

Neither PO Shepherd (see Board Review #8) nor PO Kokomeci (see Board Review #9) had any recollection of this or any such incident involving a pedestrian staring at them as they sat in their car. PO Kokomeci confirmed that she recognized § 87(2)(b) from her arrest on August 18, 2015, but maintained that she had not seen her at any point thereafter. Both she and PO Shepherd explicitly denied that PO Shepherd ever made any of the aforementioned statements or used any profanity while speaking to any civilian that day. Furthermore, both officers were adamant that PO Shepherd never uses profanity while speaking to civilians.

§ 87(2)(g)

Squad: ____

Investigator: _____
Signature Print Date

Pod Leader: _____
Title/Signature Print Date